

Court No. - 3

Case :- WRIT - C No. - 14302 of 2022

Petitioner :- Kuldeep Kumar Sonkar @ Shiv Babu Sonkar

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Jyotirbindu Tripathi, Ashish Tiwari

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Deepak Verma, J.

Heard learned counsel for the petitioner, learned Standing Counsel for the respondent nos.1 & 5 and Sri Narendra Kumar Tiwari, learned counsel for the respondent nos.2 to 4.

This writ petition has been filed praying for the following relief:

"(I) Issue a writ, order or direction in the nature of certiorari quashing the impugned recovery citation dated 25.03.2022 issued by the respondent no.5 against the electricity bill of the amount of Rs.2,00,035/-.

(II) Issue a writ, order or direction in the nature of mandamus directing the respondents to provide correct electricity bill to the petitioner and permit the petitioner to deposit the corrected bill in an easy installment within an stipulated period as fixed by the Hon'ble Court after adjusting the amount which was already deposited by the petitioner under O.T.S. scheme on 04.01.2021.

(III) Issue a writ, order or direction in the nature of mandamus directing the respondent no.2 and 3 to decide the representation of the petitioner dated 26.03.2022 and reminder dated 13.04.2022 expeditiously within an stipulated period and till the disposal of representation the impugned recovery certificate dated 25.03.2022 may be kept in abeyance in the interest of justice."

Sri Narendra Kumar Tiwari, learned counsel for the respondent No. 2 to 4/ Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, this **writ petition is disposed off** giving liberty to the petitioner to submit his/ her objection under Para 6.5 of U.P. Electricity Supply Code, 2005 before the respondent No.2, within four weeks from today along with a certified copy of this order. In the event such an

objection is submitted within the stipulated period, it shall be decided by the respondent No.2 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 30.5.2022
SKD